

		Board of Directors voted to remove Plaintiff from his position as an officer and director of the Company. On February 4, 2025, Plaintiff was terminated as an employee of the Company. As a result, Plaintiff no longer has a reasonable expectation of his salary. Further, the Company has ignored Plaintiff's corporate records request made on June 19, 2025, and August 29, 2025, pursuant to Corporations Code Section 1601." Defendants argue these allegations are irrelevant because they pertain to Plaintiff's role as an employee and not as Monarch's shareholder. Defendants are incorrect. These allegations are relevant as they explain the extent of the controlling shareholders' abuse of authority and persistent unfairness towards Plaintiff. They also provide additional context for why involuntary liquidation is reasonably necessary to protect Plaintiff's rights. The motion is DENIED as to these allegations. <u>Item (k)</u>: Defendants seek to strike the phrase "have been guilty of" from paragraph 67 of the eighth cause of action for Involuntary Dissolution. [The Motion incorrectly states this phrase appears in paragraph 68.] Defendants argue this is false because the SAC does not shows that Defendant Borski and Stanley have been found guilty of any wrongdoing since this is a civil action, not a criminal action. Defendants' argument lacks merit. The phrase "have been guilty of or have knowingly countenanced persistent and pervasive fraud, mismanagement or abuse of authority" that is alleged in paragraph 67 tracks the language of Corporation Code section 1800(b)(4) verbatim. (Corp. Code § 1800(b)(4).) The motion is DENIED as to these allegations.
4	24-01418766 <i>Bevli vs. Williams</i>	Motion for Leave to File Amended Complaint Plaintiffs Sangeeta Bevli and Gurcharan Bevli's Motion for Leave to Amend is GRANTED. Plaintiff is ORDERED To file the proposed amended complaint attached to this Motion within 5 days of this order. "A motion to amend a pleading before trial must: [¶] (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; [¶] (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and [¶] (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." (Cal. Rules of Court, rule 3.1324(a).) Additionally, the party must submit a declaration providing "(1) The effect of the amendment; [¶] (2) Why the amendment is necessary and proper; [¶] (3) When the facts giving rise to the amended allegations were discovered; and [¶] (4) The reasons why the request for amendment was not made earlier." (Rule 3.1324(b).)

		Plaintiffs have complied with California Rules of Court, rule 3.1324, subdivision (b). Plaintiffs' counsel states the effect of the amendment, why the amendment is necessary and proper, when facts giving rise to the amended allegations were known, and why amendment was not sought earlier. (English Decl., ¶¶ 2-5.) Plaintiff has also included a copy of the amended complaint. (Mot., Ex. B-C.) Thus, Plaintiff has complied with the statutory requirements to move for leave to amend.
7	23-01313302 Carmona vs. Mazella New Tech Corporation	Motion for Summary Judgment and/or Adjudication Cross-Defendant Cal Pac Sheet Metal, Inc. ("Cal Pac") moves for Summary Judgment or, in the alternative, Summary Adjudication as to each of Cross-Complainant Mazzella New Tech Corporation's ("Mazzella") claims alleged in the Cross-Complaint against Cross-Defendant is DENIED. Cal Pac failed to provide Mazzella sufficient notice of the Motion. Code of Civil Procedure section 437c, subdivision (a)(2) requires 81 days' notice for a motion for summary judgment, with an additional two court days if the notice is served electronically. (<i>See</i> Code Civ. Proc., § 437c, subd. (a)(2); Cal. Rules Ct., Rule 2.251(h).) This notice period is mandatory; the court has no discretion to shorten the notice period absent the parties' express stipulation (<i>see McMahon v. Superior Court</i> (2003) 106 Cal.App.4th 112, 116; <i>Urshan v. Musicians' Credit Union</i> (2004) 120 Cal.App.4th 758, 763-766); and the court cannot cure a defect in notice by continuing the hearing for the missing number of days (<i>Robinson v. Woods</i> (2008) 168 Cal.App.4th 1258, 1268). In addition, the court cannot "infer[] from silence" the plaintiff's "waiver of the right to the statutorily mandated minimum notice period for summary judgment hearings." (<i>Urshan v. Musicians' Credit Union, supra</i>, 120 Cal.App.4th at p. 768.) Here, Cal Pac's Proof of Service reflects that Defendants served the instant motion by e-mail on 3-13-26. (ROA No. 292.) Since the moving papers were electronically served, Cal Pac was required to serve the papers on or before 3-12-26. Cal Pac has not submitted any evidence to show Mazzella stipulated to shorten the statutory 81-day notice period, and the court record reflects no such stipulation. Clerk is ordered to give notice.
8	23-01309309 Gutierrez vs. General Motors, LLC	Motion for Attorney Fees Plaintiffs Martha L. Gutierrez and Jose A. Moreno's Motion for Attorneys' Fees, Costs, and Expenses is GRANTED in the reduced amount of \$17,136.50. Plaintiffs seek lodestar fees of \$21,101.00, a 0.35 multiplier enhancement of \$7,385.35, \$3,500.00 in anticipated fees, and \$2,193.86 in costs and expenses. Timeliness of motion Defendant General Motors, LLC (GM) contends the motion is untimely as it was filed 189 days after Plaintiffs' filing of a Notice of Settlement.